

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
MONDAY, JUNE 29, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**HAMANN v. GENERAL MOTORS, LLC
Case No. CU24-09682**

Demurrer and Motion to Strike filed by Defendant GENERAL MOTORS, LLC

TENTATIVE RULING

The demurrer of GENERAL MOTORS, LLC, to the first amended complaint is overruled in part, and sustained without leave to amend in part.

Defendant filed this demurrer on the ground that the lemon law causes of action (first through fourth) are barred under CCP Section 871.21. However, plaintiff filed this action on December 10, 2024, before CCP Sections 871.20 et. seq., came into effect on January 1, 2025. (See Legislative Counsel's Digest linked to the History for CCP Section 871.21). The demurrer is overruled as to the first through fourth causes of action.

Defendant also filed this demurrer on the ground that the fifth cause of action for fraudulent inducement is barred by the three-year statute of limitations under CCP Section 338(d). The court finds that this cause of action accrued when plaintiff knew or reasonably should have known of any alleged fraud as the claimed defects were discovered within the three-year period after purchase, and well within the warranty period. The delayed discovery rule would only apply if plaintiff was unable to discover the defects earlier and was not negligent in doing so. The FAC does not allege such facts. Further, the court finds the FAC does not allege sufficient facts to indicate that any tolling provision applies here. There are not sufficient facts alleged that the action

should be tolled due to a class action, the repair rule, or the delayed discovery rule. The equitable tolling doctrine does not apply because no facts are alleged that GM made misrepresentations or affirmatively acted in any way to prevent plaintiff from bringing this action earlier, which would cause this doctrine to apply. Because no additional facts can cure this defect, the demurrer is sustained as to the fifth cause of action without leave to amend.

Defendant also filed this demurrer on the ground that the first amended complaint does not state facts sufficient to constitute a cause of action for fraudulent inducement based on concealment. Because this cause of action has been disposed of based on the expired statute of limitations, there is no need for the court to address the matter further.

Defendant GENERAL MOTORS, LLC, is to file an answer to the first amended complaint within thirty (30) days of the date this order is served.

Motion to Strike

The motion to strike filed by defendant GENERAL MOTORS, LLC, is granted. The first amended complaint does not allege facts sufficient to state a cause of action for fraud upon which a claim for punitive damages may be based. The first amended complaint also does not allege facts sufficient to state a claim for punitive damages based on malice, oppression, or violation of the Song Beverly Act.

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